

26NNCV03173 26NNCV03173

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 26NNCV03173 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV03173

MP: Defendant

North Light Specialty Insurance Company

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

On April 23, 2026,

Nadeza Mikhaylova ("Plaintiff") filed a Complaint against United Financial Casualty Company, Allstate Insurance Company, and Does 1-20 ("Defendants") for:

(1) Motor Vehicle Negligence; and (2) General Negligence. On December 25, 2021, Plaintiff alleges she was involved in a motor vehicle collision with Defendants, such that she suffered personal injuries.

On April 30, 2026,

Plaintiff amended the Complaint, naming North Light Specialty Insurance Company ("North") as Doe 1.

MOTION ON CALENDAR:

On June 4, 2026,

North filed a Demurrer to the Complaint.

The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the

complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND

CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Banuelos Decl., ¶¶9-10.)

ANALYSIS:

In the First Cause of

Action for Motor Vehicle Negligence, Plaintiff alleges that UFCC, Allstate, and North (Doe 1) operated the motor vehicle; and UFCC and Allstate owned the motor vehicle and were the agents and employees acting within the scope of their agency of other defendants. (Compl. at p.4.)

In the Second Cause

of Action for General Negligence, Plaintiff alleges Defendants negligently owned, maintained, controlled, and/or operated the vehicle by causing their vehicle to recklessly strike Plaintiff's vehicle. (Id. at p.5.)

First, North demurs

to the Complaint, arguing that it is barred by the statute of limitations because it asserts claims for personal injury with a two-year statute of limitations period and property damages with a three-year statute of limitations period. (C.C.P. §§ 335.1, 338.)

The Complaint alleges

that the motor vehicle collision between Plaintiff and Defendants occurred on

December 25, 2021. The Complaint was

filed on April 23, 2026, which is over four years after the incident occurred. Based on Plaintiff's allegations, the action

is time barred as it was not filed within two to three years of the subject

incident.

Second, North argues that Plaintiff's

untimely arbitration demand does not salvage her claims. While Court may rely on judicially noticeable

documents like court filings, this argument relies on facts extrinsic to the

Complaint's allegations. The demurrer

tests the pleading alone and not the evidence or other extrinsic matters which

do not appear on the face of the pleading or cannot be properly inferred from

the factual allegations of the complaint.

(Executive Landscape Corp. v. San

Vicente Country Villas IV Assn. (1983) 145 Cal.App.3d 496, 499.) Thus, North's arguments that this action

involves an uninsured motorist claim, that Plaintiff attempted to email a copy

of an arbitration demand on the wrong entity (Progressive Insurance), and that

Plaintiff attempted to initiate arbitration (the Court notes that the previous

motion to compel arbitration was directed only at UFCC and not at North) are

arguments that are not directed at the allegations pleaded in the operative

Complaint.

The demurrer to the complaint is

sustained with leave to amend.

RULING:

In the event the

parties submit on this tentative ruling, or a party requests a signed order or

the court in its discretion elects to sign a formal order, the following form

will be either electronically signed or signed in hard copy and entered into

the court's records.

ORDER

Defendant North Light

Specialty Insurance Company's Demurrer came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE
DEMURRER TO THE COMPLAINT IS SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

DEFENDANT
NORTH LIGHT SPECIALITY INSURANCE COMPANY
TO GIVE NOTICE.

IT IS SO ORDERED.